

Md.Javed & Ors vs State Of Bihar & Anr on 6 October, 2010

Author: Jyoti Saran

Bench: Jyoti Saran

IN THE HIGH COURT OF JUDICATURE AT PATNA

Cr.Misc. No.33574 of 2010

1. MD.JAVED
2. Md. Imtiyaz
3. Sheikh Jasimuddin @ Sk.Jasimuddin @ Sk.Jasim
4. Bibi Mohsina Khatoon
5. Bibi Khusbu
6. Md. Sayeed Akhtar

Versus

STATE OF BIHAR & ANR

2. 6.10.2010

. Heard learned counsel appearing on behalf of the petitioners, Mr. Nafisuzzoha, learned counsel appearing on behalf of the complainant and the learned counsel appearing on behalf of the State.

The petitioners apprehend their arrest in connection with Complaint Case No.1053 of 2009 for the offences punishable under Section 498A of the Indian Penal Code and section 4 of the Dowry Prohibition Act.

The complaint petition alleges harassment, torture and ill-treatment of the complainant at the hands of the husband and his family members including the present petitioners. The complaint also alleges dowry demands.

Learned counsel for the petitioners submits that whereas the petitioner nos.1 and 2 are brothers-in-law of the complainant, petitioner no.3 is the father-in-law, petitioner no.4 is mother-in-law, petitioner no.5 is the sister-in-law and the petitioner no.6 is the husband of the sister-in-law. He further submits that the allegation as set out in the complaint petition is completely false and that the complainant on her own will is not staying at the matrimonial house. He further submits that the husband of the complainant, in fact, has filed a petition for restitution of conjugal rights under section 9 of the Hindu Marriage Act and a copy whereof is placed at Annexure-3 of the application. He submits that on the contrary, the complainant has filed a maintenance case and has also been awarded maintenance by the court below.

Learned counsel for the complainant appears and opposes the prayer made on behalf of the petitioners and submits that these petitioners are equally responsible for the disharmony that has occurred in marital life of the complainant.

Having regard to the circumstances and upon consideration of the rival submissions advanced on behalf of the contesting parties, let the petitioners (1) Md.Javed,(2) Md. Imtiyaz (3) Sheikh Jasimuddin @ Sk.Jasimuddin @ Sk.Jasim (4) Bibi Mohsina Khatoon, (5) Bibi Khusbu and (6) Md.

Sayeed Akhtar, in the event of their arrest or surrender within a period of four weeks from the date of receipt/production of a copy of this order, be released on bail upon each of them furnishing bail bonds of Rs.10,000/- (ten thousand) with two sureties of the like amount each to the satisfaction of the Chief Judicial Magistrate, Madhepura in connection with Complaint Case No.1053 of 2009 subject to the conditions laid down under section 438(2) of the Code of Criminal Procedure.

(Jyoti Saran, J) ahk